



File No.: EXP202209442

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 01/18/2023, and based on the following

FACTS

FIRST: On 01/18/2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202209442, by virtue of which a fine of €300 was imposed on A.A.A. for the violation of the provisions of Article 13 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (hereinafter GDPR), infractions classified in Articles 83.5.b) and 83.4.a) and qualified as very serious and serious in Articles 72.1.h) and 73.n) of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), infraction classified in Article 83.5.a) of the GDPR and qualified as very serious in Article 72.1.h) of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

This resolution, which was notified to the appellant on 01/31/2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of the LOPDGDD, and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00492/2022, the following was recorded:

First: Existence of several surveillance cameras in the establishment of the reported party, located at ***ADDRESS.1, without the requisite informative signs of the monitored area, nor having the rest of the information required by the GDPR available to the affected parties.

Second: A.A.A. with NIF ***NIF.1 is identified as the main responsible for the devices.

Third: This Agency has notified the reported party of the agreement to open the present sanctioning procedure, but no allegations or evidence contradicting the reported facts have been presented.

THIRD: On 02/15/2023, the appellant filed a recourse for reconsideration, arguing the following:

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2/5

“[...]

First.- That the cameras located in the establishment were not functioning, were second-hand, and damaged. They were installed solely for the purpose of deterring potential thieves (...).

Second.- That due to the lack of functionality and the infeasibility of their repair, the cameras have been removed.

Third.- That at no time was the functionality checked by the agents who visited the premises.

Fourth.- That the owner of the activity did not receive any prior notification to that resolution and therefore only has the option to file this recourse for reconsideration.

[...]”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

Due to reasons of the functioning of the administrative body, therefore not attributable to the appellant, as of the date of this document, the requisite pronouncement of this Agency regarding the request of the interested party has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

However, despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation, as provided in Article 21.1 of the aforementioned LPACAP. Therefore, it is appropriate to issue the resolution that concludes the procedure of the recourse for reconsideration filed.

On 02/15/2023, a document qualified as Recourse for Reconsideration was received, where this Agency has first recorded allegations from the reported party.

C/ Jorge Juan, 6

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3/5

The initial facts arise from a Complaint-Report submitted by the complainant on 19/08/2022, in which it states the following:

“(…) It is verified that said establishment has video surveillance cameras and does not display any sign indicating to users that they are being recorded and where they can exercise their rights of rectification, cancellation, etc. (…)”

First of all, it is necessary to indicate that the initiation agreement of the sanctioning procedure PS/00492/2022 was notified in a timely manner at ***ADDRESS.2, which, as the appellant party itself acknowledges, is its domicile.

It is documented in the administrative file the double attempt of notification by the Official Postal Service, with the annotation “Returned to Origin due to Excess (not collected at the office)” and also the publication in the Official State Gazette dated 24/11/2022 of the notification announcement dated 21/11/2022 within the framework of the procedure PS/00492/2022. Thus, this Agency considers that the provisions of the LPACAP have been fulfilled, as two attempts of notification were made at the domicile of the appellant party and, since these attempts were unsuccessful, the edictal communication was carried out by publishing the announcement of the initiation agreement in the Official State Gazette.

In the absence of a response from the summoned party, and as stated in the initiation agreement, if no allegations are made within the stipulated period, that initiation agreement may be considered a proposal for resolution, according to the provisions of Article 64.2.f) of the LPACAP.

Therefore, a resolution was issued by the Director of the Spanish Agency for Data Protection, imposing a fine of €300 for the infringement of Article 13 of the GDPR.

Another of the statements made by the appellant party refers to the non-functioning of the cameras and, consequently, to the non-use of images; there being “no justification of any kind for a report on cameras lacking a recording mechanism.” In this regard, it is worth recalling that Article 77.5 of the LPACAP provides the following: “5. The documents formalized by officials recognized as authorities, which, observing the corresponding legal requirements, record the facts established by them, shall serve as proof of these facts unless proven otherwise” (the bold type belongs to this agency). Thus, this Agency has correctly proceeded to initiate the sanctioning procedure PS/00492/2022 by virtue of a Complaint-Report, which has a presumption of veracity in the exercise of its functions and which clearly states that there are no informative signs in the video surveillance areas when the establishment of the appellant party has video surveillance cameras.

To this, it should be added that, in accordance with the provisions of Article 118.1 of the LPACAP, “Facts, documents, or allegations of the appellant will not be taken into account in the resolution of the appeals when they could have been submitted during the allegations phase but were not. The practice

of evidence may also not be requested when its lack of realization in the procedure in which the appealed resolution was issued is attributable to the interested party,” which is the situation of C/ Jorge Juan, 6

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4/5

present procedure. And this is because, as previously indicated, the notification of the sanctioning procedure has been carried out with due diligence and in accordance with the established procedure, having given the now appellant the opportunity to allege whatever he deemed appropriate at the procedural moments granted for that purpose.

For the above reasons, the allegations presented are dismissed.

Having considered the cited provisions and other generally applicable ones,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 18/01/2023, in file EXP202209442.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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5/5